

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**202200563119CUOR: Steven Walczak vs. Alicia R Alinaya
07/01/2026 in Department 42
Motion to Amend Judgment**

Matter: Motion to Amend Judgement

Tentative Ruling:

The Court intends to DENY the motion to amend judgment.

Background

Plaintiffs filed this case on February 17, 2022, alleging noise disturbances from the upstairs neighbor Defendant Alicia R. Alinaya. Defendant's Answer was stricken and default entered on June 20, 2024. After a delay due to Defendant's bankruptcy and automatic stay, the prove-up hearing was conducted on November 4, 2025. Default judgment was entered on December 12, 2025, in the amount of \$221,871.60, and filed on December 30, 2025.

The proposed judgment submitted to the Court on October 28, 2025, included a request for permanent injunctive relief. Specifically, Plaintiffs sought an order providing:

Defendant is hereby ordered to undertake and complete all necessary inspections, repairs, replacements, and necessary improvements to ensure the Upstairs Unit's flooring complies with the CC&Rs and applicable California law, including ensuring that the noise levels emanating from the Upstairs Unit do not exceed the allowable noise level limits under the Port Hueneme Municipal Code.

When the Court entered default judgment on December 12, 2025, it declined to sign the proposed judgment containing this injunctive language. Plaintiffs subsequently submitted a second proposed order requesting the same permanent injunction, using identical language. The Court again rejected that request on January 8, 2026.

The procedural history demonstrates that the Court has already considered and declined to grant the requested permanent injunction on two separate occasions. Having twice refused to include the proposed injunctive relief in its orders, the Court has effectively determined that such relief is not warranted under the circumstances.

Nevertheless, Plaintiffs now make a third attempt to obtain the very same permanent injunction by seeking to amend the judgment to include the identical language previously rejected by the Court. A motion to amend judgment is not a vehicle to relitigate relief the Court has already considered and declined to award. Because Plaintiffs identify no material change in the facts, the law, or the procedural posture that would justify a different result, their renewed request is denied.

Analysis

A permanent injunction is an equitable remedy that may be granted in the court's discretion where a damage remedy is inadequate, where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief, and where necessary to prevent multiplicity of judicial proceedings. See Civ. Code, § 3422. Here, besides the past noise complaints between 2018-2022, the declarations submitted with the prove-up hearing only assert that noise complaints were an issue twice in November 2024, once on November 10, 2024, and then again on November 18, 2024. (Declaration of Samantha Walczak in Support of Plaintiffs and Cross-Defendants Steven Walczak and Samantha Walczak's Application for Default Judgement Against Defendant and Cross-Complainant Alicia R. Alinaya at ¶ 17; Declaration of Steven Walczak in Support of Plaintiffs and Cross-Defendants Steven Walczak and Samantha Walczak's Application for Default Judgement Against Defendant and Cross-Complainant Alicia R. Alinaya at ¶ 18.) The evidence provided establishes that the noise issues were discrete events that last occurred more than 18 months ago.

There is no other evidence of continuing noise issues properly before the Court, and no evidence whatsoever of continuous noise issues. Injunctive relief must rest on evidence of a real and immediate threat of unlawful conduct, not speculation or conjecture. (*IT Corp. v. County of Imperial* (1983) 35 Cal.3d 63, 69; *Intel Corp. v. Hamidi* (2003) 30 Cal.4th 1342, 1362-63. Courts do not issue injunctions that simply order compliance with the law absent proof of a **present** or threatened violation. (*Bring Back the Kern v. City of Bakersfield* (2025) 110 Cal.App.5th 322.)

In other words, at this juncture there is insufficient evidence that irreparable harm will occur without the injunction. Moreover, damages can be ascertained as evident by the prior court award of damages, which makes an equitable remedy unnecessary.

Finally, the requested remedy is inappropriate because the proposed order is extremely broadly worded, seeking to require the upstairs owner to “*undertake and complete all necessary inspections, repairs, replacements, and necessary improvements to ensure the Upstairs Unit's flooring complies with the CC&Rs and applicable California law, including ensuring that the noise levels emanating from the Upstairs Unit do not exceed the allowable noise level limits under the Port Hueneme Municipal Code.*” As recently explained in *Bring Back the Kern v. City of Bakersfield* (2025) 110 Cal.App.5th 322, 357:

A court directive that requires one to “ ‘guess at its meaning and differ as to its application violates the first essential of due process of law.’ ” (*In re Berry* (1968) 68 Cal.2d 137, 156, 65 Cal.Rptr. 273, 436 P.2d 273.) Consequently, “ ‘an injunction must not be uncertain or ambiguous and the defendant must be able to determine from the order what he may and may not do.’ ” (*City of Redlands v. County of San Bernardino* (2002) 96 Cal.App.4th 398, 415, 117 Cal.Rptr.2d 582.)

For example, courts may not issue broad injunctions simply requiring that the defendant “ ‘obey the law.’ ” (*Id.* at p. 416, 117 Cal.Rptr.2d 582; see *Cook v. Craig* (1976) 55 Cal.App.3d 773, 786, 127 Cal.Rptr. 712; see also, *Long Beach Memorial*

Medical Center v. Kaiser Foundation Health Plan, Inc. (2021) 71 Cal.App.5th 323, 343, 286 Cal.Rptr.3d 419.)

It is the burden of the party seeking injunctive relief to formulate the nature of the remedy sought. (*O'Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481, 47 Cal.Rptr.3d 147 (*O'Connell*).) The moving party must show not only that they are entitled to a preliminary injunction, but also that they are entitled to the particular breadth of injunctive relief sought. (See *Anderson v. Souza* (1952) 38 Cal.2d 825, 843, 243 P.2d 497 (*Anderson*).)

The requested injunction is impermissibly vague, amounting to little more than a broad directive to comply with unspecified provisions of the applicable CC&Rs, unidentified California law, and unspecified portions of the local Municipal Code. As such, Plaintiffs have failed to satisfy their burden of establishing that the requested injunctive relief is sufficiently definite and enforceable.

Moreover, the equitable relief sought is not warranted based on the evidence presented. The Court has already denied this requested relief on two separate occasions, and Plaintiffs have presented no basis to justify a different result.

Accordingly, Plaintiff's Motion to Amend the Judgment is DENIED. Plaintiff is ordered to provide notice of the Court's ruling.